



**153rd GENERAL ASSEMBLY  
FEE IMPACT**

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| <b>BILL:</b>        | <b>HOUSE BILL NO. 63</b>                                                    |
| <b>SPONSOR:</b>     | <b>Representative Wilson-Anton</b>                                          |
| <b>DESCRIPTION:</b> | <b>AN ACT TO AMEND TITLE 16 OF THE DELAWARE CODE RELATING TO FIREWORKS.</b> |

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*In accordance with 29 Del. C. §913, the following information is provided relating to licenses and fees.*

**Description of the Legislation:**

This Act regulates fireworks sales through a permit system, ensuring consumer awareness through required safety information, and generating revenue for the Fire Marshal's office to improve oversight and public education for selling or possessing fireworks.

**Affected Entities:**

Local fire companies, State Fire Prevention Commission, State Fire Marshal and State Fire School.

**Fiscal Impact:**

This Act establishes a retail sales permit fee of \$100, wholesale License fee of \$100, an inspection fee of \$25 for temporary physical structures, and a separate \$25 inspection fee for fireworks inventory. The State Fire Marshal estimates 100 retail stores and 5 wholesale firework companies would be impacted. Delaware State Fire Marshal would inspect all locations registered and issued a permit to sell consumer fireworks in Delaware during the three (3) 15-day allowable sales period to ensure compliance. The State Fire Marshal estimates the following revenues will be generated upon enactment:

- Retail Sales Permit Fee revenues of \$10,000 - 30,000.
- Wholesale License Fee revenues of \$500.
- Inspection Fee for temporary structures revenues of \$2,500 - \$7,500.

**Intended Use of Revenue:**

Funds generated through the application registration and inspection fees would be retained by the State Fire Marshal in a special fund. The revenue generated would be used by the State Fire Marshal to ensure compliance, education and awareness with local fire companies in case of an emergency.

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